HEADNOTE

> *"1. It follows from Rule 278.1 and 2 RoP that written pleadings, like the Statement of grounds of appeal in the case-at-hand, are served by the Registry in the electronic CMS of the Court unless service cannot be effected by means of electronic communication.*
> *2. Prior communication between the parties themselves of the written pleading via another electronic system like the German special electronic lawyer's mailbox (besonderes elektronisches Anwaltspostfach, (beA)) cannot be considered as effective service under Rule 278.1 RoP."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Procedural order

PATENT
EP 3167888
TREATMENT OF PAROXYSMAL NOCTURNAL HEMOGLOBINURIA PATIENTS BY AN INHIBITOR OF COMPLEMENT

KEYWORDS
Service

Rule 278 Service of written pleadings and other documents

SUMMARY
The Court of Appeal in Luxembourg issued a procedural order. The patent at issue relates to treatment of paroxysmal nocturnal hemoglobinuria patients by an inhibitor of complement. According to the headnotes of the decision, written pleadings must be served through the Court's electronic case management system under the Rules of Procedure. Prior communication between the parties using alternative systems, such as the German lawyer's mailbox, does not constitute effective service. This means that compliance with the Court's designated electronic filing method is mandatory for procedural documents.